

An Act

ENROLLED HOUSE
BILL NO. 3742

By: Harris and Timmons of the
House

and

Daniels of the Senate

An Act relating to criminal procedure; creating the Due Process Protection Act of 2026; amending 22 O.S. 2021, Section 258, as amended by Section 2, Chapter 269, O.S.L. 2022 (22 O.S. Supp. 2025, Section 258), which relates to preliminary examinations and proceedings; requiring the disclosure of certain information to the defense; providing construing provision; authorizing the court to set disclosure deadline under certain circumstances; amending 22 O.S. 2021, Section 2002, as amended by Section 2, Chapter 327, O.S.L. 2025 (22 O.S. Supp. 2025, Section 2002), which relates to the Oklahoma Criminal Discovery Code; directing the state to disclose certain evidence prior to the initial appearance of defendants; requiring the disclosure of evidence favorable to the defendant; requiring disclosure despite its form; declaring the ongoing duty to disclose information; increasing time limitation for introducing testimony from informants and codefendants; updating informant references; modifying scope of certain defined term; clarifying disclosure duties of defendants; establishing time limitation for completing discovery issues; providing an exception to certain witnesses; providing for noncodification; and providing an effective date.

SUBJECT: Criminal procedure

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law not to be codified in the Oklahoma Statutes reads as follows:

This act shall be known and may be cited as the "Due Process Protection Act of 2026".

SECTION 2. AMENDATORY 22 O.S. 2021, Section 258, as amended by Section 2, Chapter 269, O.S.L. 2022 (22 O.S. Supp. 2025, Section 258), is amended to read as follows:

Section 258. ~~First:~~ A. The witnesses must be examined in the presence of the defendant, and may be cross-examined by the defendant. On the request of the district attorney, or the defendant, all the testimony must be reduced to writing in the form of questions and answers and signed by the witnesses, or the same may be taken in shorthand and transcribed without signing, and in both cases filed with the clerk of the district court, by the examining magistrate, and may be used as provided in Section 333 of this title. In no case shall the county be liable for the expense in reducing such testimony to writing, unless ordered by the judge of a court of record.

~~Second:~~ B. The district attorney may, on approval of the county judge or the district judge, issue subpoenas in felony cases and call witnesses before the district attorney and have them sworn and their testimony reduced to writing and signed by the witnesses at the cost of the county. Such examination must be confined to some felony committed against the statutes of the state and triable in that county, and the evidence so taken shall not be receivable in any civil proceeding. A refusal to obey such subpoena or to be sworn or to testify may be punished as a contempt on complaint and showing to the county court, or district court, or the judges thereof that proper cause exists therefor.

~~Third:~~ C. No preliminary information shall be filed without the consent or endorsement of the district attorney, unless the defendant be taken in the commission of a felony, or the offense be of such character that the accused is liable to escape before the district attorney can be consulted. If the defendant is discharged and the information is filed without authority from or endorsement of the district attorney, the costs must be taxed to the prosecuting witness, and the county shall not be liable therefor.

~~Fourth:~~ D. The convening and session of a grand jury does not dispense with the right of the district attorney to file complaints and ~~informations~~ information, conduct preliminary hearings and other routine matters, unless otherwise specifically ordered, by a written

order of the court convening the grand jury; made on the court's own motion, or at the request of the grand jury.

~~Fifth:~~ E. There shall be no preliminary examinations in misdemeanor cases.

~~Sixth:~~ F. A preliminary magistrate shall have the authority to limit the evidence presented at the preliminary hearing to that which is relevant to the issues of: (1) whether the crime was committed, and (2) whether there is probable cause to believe the defendant committed the crime. Once a showing of probable cause is made the magistrate shall terminate the preliminary hearing and enter a bindover order; provided, however, that the preliminary hearing shall be terminated only if the state made available for inspection law enforcement reports within the prosecuting attorney's knowledge or possession at the time to the defendant five (5) working days prior to the date of the preliminary hearing. The district attorney shall determine whether or not to make law enforcement reports available prior to the preliminary hearing. If reports are made available, the district attorney shall be required to provide those law enforcement reports that the district attorney knows to exist at the time of providing the reports, but this does not include any physical evidence which may exist in the case. This provision does not require the district attorney to provide copies for the defendant, but only to make them available for inspection by defense counsel. In the alternative, upon agreement of the state and the defendant, the court may terminate the preliminary hearing once a showing of probable cause is made.

~~Seventh:~~ G. 1. Upon request of the defense, the state shall disclose the following not less than thirty (30) days prior to the preliminary hearing:

- a. initial and supplemental reports in the possession of the district attorney,
- b. summaries of any interviews that are intended to be introduced at preliminary hearing which have not been provided or summarized in reports provided to the defense,
- c. summaries of any videos that are intended to be introduced at preliminary hearing which have not been provided or summarized in reports provided to the defense,

- d. summaries of victim interviews which have not been provided or summarized in reports provided to the defense,
- e. video or audio recordings intended to be introduced at preliminary hearing of any statements made by an adult victim, adult witness, or the defendant,
- f. photographs intended to be introduced at preliminary hearing,
- g. photographic lineups intended to be introduced at preliminary hearing,
- h. deoxyribonucleic acid (DNA) reports intended to be introduced at preliminary hearing, and
- i. 9-1-1 calls intended to be introduced at preliminary hearing.

2. Nothing in this subsection shall be construed to require the disclosure of a recording of a statement of a minor.

3. Notwithstanding the thirty-day disclosure requirement provided for in this subsection, if the preliminary hearing is set in close proximity to the request date, the court may set a reasonable time for disclosure under the provisions of this subsection.

H. A preliminary magistrate shall accept into evidence as proof of prior convictions a noncertified copy of a Judgment and Sentence when the copy appears to the preliminary magistrate to be patently accurate. The district attorney shall make a noncertified copy of the Judgment and Sentence available to the defendant no fewer than five (5) days prior to the hearing. If such copy is not made available five (5) days prior to the hearing, the court shall continue the portion of the hearing to which the copy is relevant for such time as the defendant requests, not to exceed five (5) days subsequent to the receipt of the copy.

~~Eighth:~~ I. The purpose of the preliminary hearing is to establish probable cause that a crime was committed and probable cause that the defendant committed the crime.

~~Ninth~~ J. The preliminary hearing must be set within nine (9) months from the initial appearance of the defendant. If commencement of the preliminary hearing is delayed past the nine-month time limit, a show cause hearing shall be scheduled by the court to show reason for the delay. If the court fails to find good cause for the delay, the court shall schedule a preliminary hearing as soon as practicable.

SECTION 3. AMENDATORY 22 O.S. 2021, Section 2002, as amended by Section 2, Chapter 327, O.S.L. 2025 (22 O.S. Supp. 2025, Section 2002), is amended to read as follows:

Section 2002. A. Disclosure of Evidence by the State.

1. Upon request of the defense, the state shall disclose the following:

- a. unless otherwise prohibited by law, the names and addresses, phone numbers, and, if available to the state, email addresses of witnesses which the state intends to call at trial interviewed, identified, or known by any member of law enforcement or any member of the office of the prosecutor during the course of the prosecution, together with their relevant, written or recorded statement, if any, or, if none, significant summaries of any oral statement. Phone numbers and email addresses of victims of domestic violence, sexual assault, child abuse, stalking, or violations of a protective order may be maintained by the office of the district attorney and made available to defense counsel upon request,
- b. all law enforcement reports made in connection with the particular case, including initial and supplemental reports by any person or agency involved in the investigation of the case, photographs, diagrams, vehicle dashboard camera and body camera video, and audio and video recordings directly related to the case,
- c. any all written or recorded statements and the substance of any all oral statements made by the accused or made by a codefendant to any member of law enforcement, any member of the office of the

prosecutor, or any other person or agency involved in the investigation of the case,

- d. any all photographs and lineup materials taken or used during a lineup procedure, and any notes or reports made resulting from the lineup procedure. The duty to disclose lineup materials includes all pre-lineup and post-lineup instructions given to the witness, as well as recordings made prior to, during, or following the lineup procedure, and all initial and subsequent suspect descriptions obtained from eyewitnesses,
- e. all reports or statements of examinations or tests made ~~by experts~~ in connection with the particular case, including results of physical or mental examinations ~~and of~~, preliminary or presumptive tests and screening results, scientific tests, experiments, ~~or~~ comparisons, polygraph testing, all raw data, worksheets, laboratory notes, diagrams, and peer review notes or reports and any such records stored electronically, and all records of proficiency testing relating to any testing or analysis,
- e. ~~any~~
- f. all books, papers, documents, photographs, tangible objects, buildings or places which the prosecuting attorney intends to use in the hearing or trial or which were obtained ~~from or belong to~~ during the ~~accused~~ course of the investigation,
- f.
- g. any record of prior criminal convictions of the defendant, ~~or of any codefendant~~ codefendants, and witnesses that law enforcement or the prosecutor has interviewed who the state intends to testify,
- g. ~~Oklahoma State Bureau of Investigation (OSBI) rap sheet/records check~~
- h. background checks, including criminal history, on any witness listed by the state or the defense as a witness who will testify at trial, as well as any convictions of any witness revealed through additional

record checks if the defense has furnished Social Security numbers or date of birth for their witnesses, except OSBI rap sheet/record checks shall not provide date of birth, Social Security number, home phone number or address,

- i. dispatch records, 9-1-1 calls, or other emergency service calls related to the crime. The prosecution may withhold the names and identifying information of any victim who contacted 9-1-1 or other emergency services provided; however, an application for a protective order pursuant to the provisions of paragraph 1 of subsection E of this section may be made. If the prosecution intends to call such person as a witness at a trial or hearing, the prosecution shall disclose the name and contact information, as available to the state, of such witness no later than thirty (30) days before such trial or hearing or as soon as practicable, and
- j. the name and work affiliation of all law enforcement personnel who have evidence or information relevant to any offense charged or to any potential defense thereto. Unless the court rules otherwise for good cause shown information, pursuant to the provisions of this subparagraph, relating to undercover personnel may be withheld and redacted from discovery materials without the need to file a motion and upon written notification by the prosecution that such information has not been disclosed.

2. The state shall provide the defendant ~~any~~ all evidence in its possession which may be favorable to the defendant if such including, but not limited to, evidence is material to either that:

- a. negates the guilt or punishment of the defendant as to a charged offense,
- b. reduces the degree of or mitigates the culpability of the defendant as to a charged offense,
- c. supports a potential defense to a charged offense,
- d. impeaches the credibility of a testifying prosecution witness, or

- e. undermines evidence of the identity of the defendant as a perpetrator of a charged offense.

Information under the provisions of this paragraph shall be disclosed whether or not such information is recorded in tangible form and irrespective of whether the prosecutor credits the information.

The prosecutor shall have an ongoing duty to disclose such information within a reasonable amount of time upon its discovery.

3. The prosecuting attorney's obligations under this standard extend to:

- a. material and information in the possession or control of members of the prosecutor's staff,
 - b. any information in the possession of law enforcement agencies that regularly report to the prosecutor of which the prosecutor should reasonably know, and
 - c. any information in the possession of law enforcement agencies who have reported to the prosecutor with reference to the particular case of which the prosecutor should reasonably know.
4. a. If the state intends to introduce testimony of a ~~jailhouse~~ an informant, including a codefendant, the state shall disclose at least ~~ten (10)~~ thirty (30) days prior to trial:
- (1) the complete criminal history of such informant, including any dismissed charges,
 - (2) any deal, promise, inducement or benefit that the state or law enforcement agency has made or may make in the future to the ~~jailhouse~~ informant in connection with the testimony of such informant,
 - (3) the specific statements or recordings made by the suspect or defendant and the time, place and manner of the disclosure to the ~~jailhouse~~ informant,

- (4) all other filed cases in which the state intended to introduce the testimony of the ~~jailhouse~~ informant in connection with a deal, promise, inducement or benefit, the nature of the deal, promise, inducement or benefit, and whether the testimony was admitted in the case,
 - (5) whether at any time the ~~jailhouse~~ informant recanted the testimony or statement, and if so, a transcript or copy of such recantation, if any, and
 - (6) any other information relevant to the credibility of the informant.
- b. ~~Each district attorney's office shall maintain a central record that tracks each case in which the state intended to introduce the testimony of the jailhouse informant against a suspect or defendant in connection with a deal, promise, inducement or benefit, the nature of the deal, promise, inducement or benefit and whether such testimony or statements were admitted in the case. Such record shall be sent to the District Attorneys Council which shall maintain a statewide record of such information. Records maintained pursuant to this paragraph shall only be accessible to prosecutors and shall not be subject to the Oklahoma Open Records Act. By September 15 of each year, the District Attorneys Council shall publish an annual report of aggregate, de-identified data regarding the total number of cases tracked pursuant to this section, and the number of cases added during the previous fiscal year pursuant to this section by each district attorney's office. A copy of the report shall be distributed to the Governor, the President Pro Tempore of the Senate, the Speaker of the House of Representatives and the chairs of the Senate and House Judiciary Committees.~~
- c. For purposes of this paragraph, ~~"jailhouse informant"~~ "informant" means a person who provides, or who the prosecutor intends to provide, testimony about admissions or other relevant information made to him or her by the suspect or defendant ~~while both persons~~

were detained or incarcerated in a penal institution and is limited to a person who:

- (1) is a codefendant,
- (2) was incarcerated with the defendant at any time, or
- (3) testifies with the promise or expectation of a benefit.

c. Each district attorney's office shall maintain a central record that tracks each case in which the state intended to introduce the testimony of a jailhouse informant against a suspect or defendant in connection with a deal, promise, inducement or benefit, the nature of the deal, promise, inducement or benefit, and whether such testimony or statements were admitted in the case. Such record shall be sent to the District Attorneys Council which shall maintain a statewide record of such information. Records maintained pursuant to this subparagraph shall only be accessible to prosecutors and shall not be subject to the Oklahoma Open Records Act. By September 15 of each year, the District Attorneys Council shall publish an annual report of aggregate, de-identified data regarding the total number of cases tracked pursuant to this section, and the number of cases added during the previous fiscal year pursuant to this section by each district attorney's office. A copy of the report shall be distributed to the Governor, the President Pro Tempore of the Oklahoma State Senate, the Speaker of the Oklahoma House of Representatives and the chairs of the Senate and House Judiciary Committees. For purposes of this subparagraph, "jailhouse informant" means a person who provides, or who the prosecutor intends to provide, testimony about admissions or other relevant information made to him or her by the suspect or defendant while both persons were detained or incarcerated in a penal institution.

B. Disclosure of Evidence by the Defendant.

1. Upon request of the state, the defense shall be required to disclose the following:

- a. the names ~~and~~, addresses, and phone numbers, and, if available to the defendant, email addresses of witnesses which the defense intends to call at trial, together with their relevant, written or recorded statement, if any, or if none, significant summaries of any oral statement,
- b. the name ~~and~~, the address, phone number, and, if available to the defense, email address of any witness, other than the defendant, who will be called to show that the defendant was not present at the time and place specified in the information or indictment, together with the witness' statement to that fact,
- c. the names ~~and~~, addresses, phone numbers, and, if available to the defense, email addresses of any witness the defendant will call, other than himself or herself, for testimony relating to any mental disease, mental defect, or other condition bearing upon his mental state at the time the offense was allegedly committed, together with the witness' statement of that fact, if the statement is redacted by the court to preclude disclosure of privileged communication.

2. A statement filed under subparagraph a, b or c of paragraph 1 of subsection A or B of this section is not admissible in evidence at trial. Information obtained as a result of a statement filed under subsection A or B of this section is not admissible in evidence at trial except to refute the testimony of a witness whose identity subsection A of this section requires to be disclosed.

3. Upon the prosecuting attorney's request after the time set by the court, the defendant shall allow him or her access at any reasonable times and in any reasonable manner to inspect, photograph, copy, or have reasonable tests made upon any book, paper, document, photograph, or tangible object which is within the defendant's possession or control and which:

- a. the defendant intends to offer in evidence, except to the extent that it contains any communication of the defendant, or
- b. is a report or statement as to a physical or mental examination or scientific test or experiment made in

connection with the particular case prepared by and relating to the anticipated testimony of a person whom the defendant intends to call as a witness, provided the report or statement is redacted by the court to preclude disclosure of privileged communication.

C. Continuing Duty to Disclose.

If, prior to or during trial, a party discovers additional evidence or material ~~previously requested or ordered~~, which is subject to discovery or inspection under the Oklahoma Criminal Discovery Code, such party shall promptly notify the other party, the attorney of the other party, or the court of the existence of the additional evidence or material.

D. Time of Discovery.

1. Motions for discovery may be made at the time of the district court arraignment or thereafter; provided that requests for police reports may be made subject to the provisions of Section 258 of this title. However, a request pursuant to Section 258 of this title shall be subject to the discretion of the district attorney. All issues relating to discovery, except as otherwise provided, will be completed ~~at least ten (10)~~ not less than thirty (30) days prior to trial. The court may specify the time, place and manner of making the discovery and may prescribe such terms and conditions as are just.

2. Upon formal arraignment and at the request of either party, the judge shall issue a scheduling order setting forth timelines for discovery to be exchanged between the state and the defendant.

3. Within thirty (30) days of the filing of an endorsed complaint, indictment, or information in a court of record, law enforcement shall provide to the prosecuting agency the following records, if such records exist:

- a. body camera videos at the time of arrest,
- b. vehicle-mounted camera videos at the time of arrest, and
- c. a recording of the administration of a sobriety test.

~~3-~~ 4. Within ninety (90) days of the filing of an endorsed complaint, indictment, or information, the prosecuting agency shall make available the records described in paragraph ~~2~~ 3 of this subsection to the defendant or his or her representative.

~~4-~~ 5. Failure of a law enforcement agency to comply with the provisions of paragraph ~~2~~ 3 of this subsection may be punished by contempt.

~~5-~~ 6. The following information may be redacted by the prosecuting agency from the records provided to a defendant or his or her representative as required by the provisions of paragraph ~~3~~ 4 of this subsection; provided that, notice of such redactions are given to the defendant or to his or her representative:

- a. information that would violate any requirement to keep certain juvenile records confidential as provided for in Title 10A of the Oklahoma Statutes,
- b. information that would materially compromise an ongoing criminal investigation or ongoing criminal prosecution other than the case involving the defendant,
- c. information that would undermine the assertion of a privilege to keep the identity of an informant confidential as provided for in Section 2510 of Title 12 of the Oklahoma Statutes,
- d. information that would identify any person who provides information to law enforcement or the information provided by that person when that person requests anonymity or where disclosure of the identity of the person or the information provided could reasonably be expected to threaten or endanger the physical safety or property of the person or the physical safety or property of others, unless said person is called to testify as a witness at any hearing or trial, or
- e. require production of records or videos that fall outside the scope permitted under the provisions of paragraph ~~2~~ 3 of this subsection.

E. Regulation of Discovery.

1. Protective and Modifying Orders. Upon motion of the state or defendant, the court may at any time order that specified disclosures be restricted, or make any other protective order. If the court enters an order restricting specified disclosures, the entire text of the material restricted shall be sealed and preserved in the records of the court to be made available to the appellate court in the event of an appeal.

2. Failure to Comply with a Request. If at any time during the course of the proceedings it is brought to the attention of the court that a party has failed to comply with this rule, the court may compel discovery or order such party to permit the discovery or inspection, grant continuance, or prohibit the party from introducing evidence not disclosed, or it may enter such other order as it deems just under the circumstances. The court may impose any appropriate remedy to cure the failure to comply.

3. The discovery order shall not include discovery of legal work product of either attorney which is deemed to include legal research or those portions of records, correspondence, reports, or memoranda which are only the opinions, theories, or conclusions of the attorney or the attorney's legal staff.

F. Reasonable cost of copying, duplicating, videotaping, developing or any other cost associated with this Code for items requested shall be paid by the party so requesting; however, any item which was obtained from the defendant by the state of which copies are requested by the defendant shall be paid by the state. Provided, if the court determines the defendant is indigent and without funds to pay the cost of reproduction of the required items, the cost shall be paid by the Indigent ~~Defender~~ Defense System, unless otherwise provided by law.

SECTION 4. This act shall become effective November 1, 2026.

Passed the House of Representatives the 24th day of March, 2026.

Presiding Officer of the House
of Representatives

Passed the Senate the 22nd day of April, 2026.

Presiding Officer of the Senate

OFFICE OF THE GOVERNOR

Received by the Office of the Governor this _____
day of _____, 20_____, at _____ o'clock _____ M.
By: _____

Approved by the Governor of the State of Oklahoma this _____
day of _____, 20_____, at _____ o'clock _____ M.

Governor of the State of Oklahoma

OFFICE OF THE SECRETARY OF STATE

Received by the Office of the Secretary of State this _____
day of _____, 20_____, at _____ o'clock _____ M.
By: _____